

Vishun Kumar Agrawal & Anr. v. U.P.P.C.L. & Others

Allahabad High Court · Division Bench · 7 August 2023 · Writ - C No. 24151 of 2016 · **Writ petition dismissed for want of prosecution on 7 August 2023, no one having appeared to press it when the matter was called. The respondent-Electricity Department's contention (recorded on 14 May 2018) that, under the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005, dues stand against the premises (petitioner No.2 being the connection holder) so that a fresh connection for the same premises sought by petitioner No.1 could not be granted, was left unadjudicated.**

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HEADNOTE

Vishun Kumar Agrawal (petitioner No.1) and his son Abhishek Agrawal (petitioner No.2) filed this writ petition in 2016 arising out of electricity dues and a refusal of supply concerning a single premises. This order-sheet of the Allahabad High Court runs from 2016 to 2023 and is dominated by repeated adjournments and pass-overs on illness slips of counsel. The only substantive articulation came on 14 May 2018, when the respondent-Electricity Department urged that, under the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005, dues exist against the premises - petitioner No.2 being the connection holder against whom an amount disclosed in the petition was due - so that a fresh connection sought for the same premises by petitioner No.1 (the father) could not be granted in view of that statutory bar; the petitioner's counsel sought time to study the matter and the point was never adjudicated. On 7 August 2023, when the petition was called (revised) and no one appeared to press it, a Division Bench dismissed the writ petition for want of prosecution. The Court thus decided no question of electricity supply law; the Clause 4.1 fourth-proviso bar on granting a new connection for premises carrying the existing consumer's outstanding dues was recorded only as the Department's contention and left open.

FACTUAL SUMMARY

The petitioners were Vishun (Vishnu) Kumar Agrawal (petitioner No.1) and his son Abhishek Agrawal (petitioner No.2). They filed Writ - C No. 24151 of 2016 before the Allahabad High Court against the U.P. Power Corporation Ltd. and others, the dispute concerning electricity supply to, and dues on, a single premises. Notice was issued on 26 May 2016 and time granted to the respondents to file counter affidavits. Over 2016 to 2018 the matter was repeatedly passed over or adjourned, largely on illness slips of counsel for one side or the other. On 16 April 2018 the Court directed the office to trace out a counter affidavit reported to be off record and the petitioners to file a rejoinder. On 14 May 2018 the respondent-Electricity Department, through its counsel, urged that in view of the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005 dues exist against the premises: petitioner No.2, Abhishek Agrawal, was the connection holder against whom an amount disclosed in the writ petition was due, and for the same premises a fresh connection was being sought by petitioner No.1, Vishnu Kumar Agrawal (the father), which could not be granted given the legal bar in that proviso. The petitioner's counsel prayed for time to study the matter and the case was listed again. Thereafter, on 7 August 2023, when the petition was called and no one appeared for the petitioners to press it, the Division Bench dismissed the writ petition for want of prosecution.

REUSABLE CONSTRUCTIONS

1. A writ petition is liable to be dismissed for want of prosecution where, on the matter being called (even after being listed 'revised'), no one appears on behalf of the petitioners to press it. *order of 7.8.2023*
2. Where the substantive challenge - here, against a Clause 4.1 fourth-proviso bar on a fresh connection for premises carrying the existing consumer's dues - is never pressed to adjudication, the respondent-licensee's recorded position is neither confirmed nor set aside; the petition simply falls for want of prosecution. *order of 14.5.2018, order of 7.8.2023*

HOLDING-UNITS

INTERPLAY · OFFTOPIC::dismissal-for-want-of-prosecution

RATIO

Writ petition dismissed for want of prosecution where no one appears to press it

QUESTION

Whether the writ petition should be dismissed where, when the matter is called, no one appears on behalf of the petitioners to press it?

HOLDING

Yes. On 7 August 2023 the matter was listed (revised) and no one appeared on behalf of the petitioners to press the writ petition; accordingly the Division Bench dismissed the petition for want of prosecution, without entering upon the merits of the electricity dues dispute or the respondent-Department's fourth-proviso-to-Clause 4.1 contention. [order of 7.8.2023](#)

EVIDENCE *"No one appears on behalf of the petitioner to press this writ petition"* [order of 7.8.2023](#)

EVIDENCE *"this writ petition is dismissed for want of prosecution"* [order of 7.8.2023](#)

FLAG Order-sheet with no printed page numbers; pins are order dates (pin_basis=date). Coram is the disposing bench of 7.8.2023 (Mahesh Chandra Tripathi and Prashant Kumar, JJ.); the earlier orders, including the substantive 14.5.2018 order, were before several other Division Benches.

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance A writ petition is dismissed for want of prosecution where, on the matter being called, no one appears to press it - the merits, including any electricity-dues challenge, going unadjudicated. [order of 7.8.2023](#)

clause-4.1-fourth-proviso-bar-on-new-connection-for-premises-with-outstanding-dues The respondent-Department urged the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005 as barring a fresh connection for a premises against which dues are outstanding in the name of the existing connection holder; the contention was recorded but left undecided. [order of 14.5.2018](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER, UNDER THE FOURTH PROVISOR TO CLAUSE 4.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, A FRESH ELECTRICITY CONNECTION FOR THE PREMISES COULD BE REFUSED TO PETITIONER NO.1 ON ACCOUNT OF DUES OUTSTANDING AGAINST PETITIONER NO.2 (THE EXISTING CONNECTION HOLDER) FOR THE SAME PREMISES.

Recorded as the respondent-Department's contention on 14 May 2018; the petitioner's counsel sought time and the point was never adjudicated, the petition being dismissed for want of prosecution. [SCJ-1077] [order of 14.5.2018](#)

NOT DECIDED — WHETHER THE DUES ASSERTED AGAINST THE PREMISES, AND ANY REFUSAL OF SUPPLY, WERE THEMSELVES VALID.

Not decided; the petition was dismissed for want of prosecution without examining the merits. [order of 7.8.2023](#)

RELATED CASES — SEE ALSO

SCJ-1077 — New connection withheld for the predecessor's/existing consumer's old dues - the substantive dues-on-premises / new-connection theme underlying (though undecided in) the present matter.

SCJ-005 — Amir Ahmad - Clause 4.3(f) recovery of a previous consumer's dues from the premises against a new-connection applicant.

SCJ-1955 — Mahesh Verma Agro Food - recent Clause 4.3(f) dues-on-premises / new-connection decision.

SCJ-006 — Anand Kumar - a Clause 4.1 supply/connection sibling of the U.P. Electricity Supply Code, 2005.